25-842 WASSILY V. BLANCHE

DECISION BELOW: 150 F.4th 100

LOWER COURT CASE NUMBER: 22-6247, 23-6289

QUESTION PRESENTED:

The asylum laws offer protection against removal for certain noncitizens in this country who suffered past persecution or reasonably fear future persecution in their country of nationality. For those “granted asylum,” the immigration laws also provide a pathway to obtain lawful permanent resident (LPR) status. Under 8 U.S.C. § 1159(b), the government "may adjust to the status of an alien lawfully admitted for permanent residence the status of any alien granted asylum," if certain statutory criteria are satisfied. The question presented is:

Whether noncitizens who were "granted asylum," but whose asylum was later terminated, are eligible for adjustment to LPR status under Section 1159(b) (as the Fifth Circuit held), or are categorically ineligible (as the Second and Fourth Circuits held)?

CERT. GRANTED 6/29/2026